

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. **ICA No.49988/2020**

The Chairman NAB VS Ramzan Sugar Mills Limited etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.
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14.10.2020 Barrister Yasir Siddique, Special Prosecutor NAB.
Mr. Aasim Mumtaz, Prosecutor NAB.

Through this Intra Court Appeal filed under Section 3 of the Law Reforms Ordinance, 1972 (the “Ordinance”), the Appellant has challenged the validity of judgment dated 28.05.2020 (the “Impugned judgment”) passed in Writ Petition No.3072 of 2020 by the learned Single Judge in Chamber, whereby the Constitutional petition filed by the Respondent No.1 was allowed and the Respondent No.2 SECP was directed to register the charge immediately.

2. When confronted how this Intra Court Appeal (the “ICA”) is maintainable in view of Proviso to Section 3 (2) of Law Reforms Ordinance, 1972 because in paragraph-6 of the impugned judgment of the learned Single Judge in

Chamber, the Appellant itself objected to the maintainability of the writ petition by stating that the Respondent had the remedy of appeal under Section 480 of the Companies Act, 2017 (the “Act”).

3. Arguments heard and record perused.

4. It is reflected from perusal of record that the Appellant is aggrieved from judgment dated 28.05.2020 passed by learned Single Judge in Chamber whereby writ petition filed by the Respondent No.1 was allowed and the Respondent No.2 Security and Exchange Commission of Pakistan (SECP) was directed to register the charge immediately. In the said petition, the order dated 07.01.2020 issued by the Respondent No.2 was assailed declaring the same to be illegal having no authority in law.

5. The order impugned in the writ petition has been passed by Additional Joint Registrar of Companies, under Companies Act, 2017, which is an appealable order in view of Section 480 of the Act. It has also transpired that the appellant had already filed objection petition under Section 13 of NAO 1999 before the learned Accountability Court, Lahore which is still pending.

6. From the above Section, it is crystal clear that against the order of the Respondent No.3 an alternate remedy of appeal is provided, as such the order dated 07.01.2020 was challengeable and the appellant has duly challenged the same by filing objection petitions under Section 480 of the Act.

7. The instant Intra Court Appeal has been filed under Section 3 of the Law Reforms Ordinance, 1972 whereas proviso to subsection (2) of Section 3 of the Law Reforms Ordinance, 1972 bars the remedy of Intra Court Appeal in those cases in which the relevant law provides the remedy of appeal, revision or review.

8. Now the question arises whether Intra Court appeal is maintainable in such a case where a remedy in the form of appeal/representation was available to the Appellant. Proviso to Section 3 of the Law Reforms Ordinance, 1972 provides that where appeal, revision or review is provided, then intra court appeal is not maintainable. Reliance in this regard is placed on the case titled "*SME Bank Limited Versus*

IzharulHaq”(2019 SCMR 939) wherein Hon’ble

Supreme Court has held as under:

“We are of the view that where the proceedings from which the writ petition has arisen provided for either review, revision or Appeal, in terms of proviso to Section 3 of the Ordinance of 1972, remedy of ICA will not be available against the judgment passed by the learned Single Judge in the writ petition”. Reliance is further placed on

case law reported as “**MUHAMMAD ASLAM**

SUKHERA and others Versus COLLECTOR

LAND ACQUISITION, LAHORE

IMPROVEMENT TRUST, LAHORE

(PLD 2005 Supreme Court 45) wherein the

Hon’ble Supreme Court of Pakistan has held as

under:

"7. There is no doubt in our mind that the award by the Tribunal is treated to be an original judgment and decree within the meaning of section 26 of the Act. Being an original decree, the award has been specifically made appealable before the High Court and then before this Court under section 54 of the Act of 1894. In view of express provisions of section 54 of the Act it is not possible for us to hold otherwise. It cannot be said that the award by the Tribunal is not an original order for the purposes of bar contained in proviso of section 3(2) of the Ordinance. Therefore, it is not necessary for us to determine as to whether the award made by the Collector could also be treated to be an original order or not. The object of Proviso to

subsection (2) of section 3 of the Ordinance, 1972 seems to be to bar the remedy of Intra Court Appeal in those cases in which the relevant law provides the remedies of appeal, revision or review.”

9. As against the original order i.e. dated 07.01.2020 a remedy of Appeal has been provided under Section 480 of the Act, and the Appellant has duly availed the said remedy by filing the objection petition which is still pending. It was held by august Supreme Court in **“FEDERATION OF PAKISTAN THROUGH SECRETARY REVENUE DIVISION, ISLAMABAD and others Versus Messrs SAHIB JEE and others”** (2017 PTD 1481) that *“remedy of representation, though not stricto senso akin to an appeal, is nevertheless a statutory remedy and, therefore, the revision must be strictly construed and applied”*. This Court through various judgments has already held that remedy of representation is equal to remedy of appeal as envisaged under Proviso of Section 3 of the Law Reforms Ordinance, 1972 thus debar remedy of Intra Court Appeal. Reference is placed on

“MUHAMMAD SHAKOOR Versus
FEDERALPUBLIC SERVICE
OMMISSION THROUGH HAIRMAN,
ISLAMABAD and 2 others” (2003 PLC
 (C.S.) 414), “YAMIN Versus
Mst. JAJAN and others” (2005 C L C 78),
“Messrs SHAHZADI POLYPROPYLENE
INDUSTRIES THROUGH ROPRIETOR
 Versus FEDERATION OF PAKISTAN
THROUGH PRESIDENT and 4 others”
 (2017 PTD 2019), “MUHAMMAD
SHRAF SAEED Versus HABIB BANK
LIMITED and another” (2018 PLC (C.S.)
 Note 13) and “HAJI AHMAD KHAN and
another Versus PROVINCE OF THE
PUNJAB and 5 others” (2018 PLC (C.S.)

36). Therefore, the instant appeal is not maintainable as the proviso to subsection (2) of Section 3 of the Law Reforms Ordinance, 1972 specifically bars the remedy of Intra Court Appeal in those cases in which the relevant law provides the remedy of appeal, revision or review.

9. In view of above situation, the

instant appeal is not maintainable;
consequently the same is hereby **dismissed**.

(Masud Abid Naqvi)
Judge

(Jawad Hassan)
Judge

ZAHOOR